

CLEARING AND FORWARDING AGENCY AGREEMENT

THIS AGREEMENT made this Year 2026 BETWEEN MIRUS MED SCIENCES (OPC) PVT LTD, a Company incorporated under the provisions of the Companies Act 1956 having its Registered office at C H A N G I C H E R L A , H Y D E R A B A D hereafter referred to as the "Company" (which expression shall unless it be repugnant to the context or meaning thereof will mean and include its successors and assigns) represented by MR. MAHIPAL REDDY UMMENTHALA

AND

(PAN {{PAN1}} having its Registered Office {{RegisteredOffice}} duly represented by (PAN {{PAN2}}), Partner (hereinafter referred to as the 'Agent' (which expression shall unless it be repugnant to the context or meaning thereof will mean and include its successors and assigns) of the Other Part;

WHEREAS

- A. The Company is engaged in the business of getting products manufactured for marketing and distribution of Pharmaceutical Products and deals in such pharmaceutical products manufactured by other manufacturers in the capacity as a principal (hereinafter referred to as "the Products").
- B. The Agent has requested the Company appoint them as one of the Carrying and Forwarding Agents of the company for the products manufactured and/or marketed by them in the State of {{State}} and the Company has agreed for the same on the terms and conditions hereinafter appearing.
- C. This Agreement shall be deemed to represent the entire Agreement between the parties hereto regarding the subject matter hereof and shall supersede, cancel and replace any and all previous Agreements, Arrangements, Writings or undertakings if any, in this behalf between the parties hereto.

NOW THESE PRESENTS WITNESSETH AND IT IS HEREBY MUTUALLY AGREED BY AND BETWEEN THE PARTIES HERETO AS UNDER:

- 1 Appointment of Agent: The Company appoints the Agent and the Agent hereby agrees to act as a Clearing and Forwarding Agent of the Company for the State of {{State}} upon the terms and conditions hereinafter mentioned. However, the Agent nearest vicinity which might not be within the same state.
2. Period of appointment: This Agreement is effective from {{Dateofappointment}} and shall be in force for a period up to {{Endofappointment}}, unless earlier determined by the Company in the manner hereinafter set out.
- 3 Extension after cessation: The Company may at its option and volition extend the arrangement to further period of 3 years or such subsequent periods on terms and conditions as stated herein or as modified, amended, altered or restructured as decided by the Company.
4. Non-Exclusivity: It is hereby expressly understood between the parties hereto that the Agent is only one of the agents appointed by the Company for warehousing, storing and transmission of its products, and the Company reserves its rights to appoint other agents for similar purpose in said place/places within the State the Agent is situated or outside or to undertake such activities by itself.
5. No change in legal structure of Agents organization: The Agent shall ensure that no change is made in the legal structure, address, promoters, partners of the Agents organization, the agents shall intimate the same immediately to the Company. In case of change in legal structure/promoters/partners, it is at the discretion of the Company whether to continue relationship with the Agent or not. 111

6. Minimum area to be provided by the Agent for warehouse and office and shall maintain necessary conditions: The agent shall provide an area of minimum 1000 sq. ft in the premises (at warehouse), which will be exclusively used for the purpose of business of the Company as per this Agreement. It is hereby agreed and understood that the Agent shall provide such additional space as may deem necessary at any later date.

During the pendency of this Agreement, the Agent shall ensure that:

- a) Necessary area is approved by the Company's representative is available in the Agent's warehouse for sorting the Company's products from time to time.
 - b) The conditions and facilities for sorting and warehousing the Company's products are in accordance with all statutory requirements governing the storage of Company's products or as applicable generally to a place where products are sorted, exhibited and sold under statute, law, rule or regulations in force.
7. Valid possession of the warehouse premises: The Agent hereby solemnly undertakes that they have in their possession tenancy of the premises or such other valid documents exhibiting, selling Company's products and that they are legally and lawfully empowered, authorized and entitled to carry on the obligations under this Agreement. In case, any disputes arise in future, the Agent agrees to intimate the same to the Company well in advance.
8. Stock shall be checked by the Agent: The stocks on reaching the premises of the Agents shall be immediately checked and counted by the Agent. In the event of loss, damage, shortage or spoilage from the transporter / courier and where necessary, shall also arrange insurance surveys as laid down under insurance Company's Rules. In the event of failure to comply with this condition, the liability of financial loss, if any, will entirely rest on the Agent, The Company will provide the Agent will full details of insurance requirements.
9. Obtain all necessary government and local approvals, Drug Licenses, Food License & Tax registration: The Agent shall also:
- a) Obtain all necessary permits, licenses, permissions, sanctions and/or approvals of all Governmental and other Local Authorities.
 - b) Obtain Drug Licenses & Food License on behalf of the Company. The Agent shall be solely responsible for due and correct compliance with all applicable laws, rules and regulations in the capacity of Agent from time to time in force and for all expenses connected therewith.
 - c) Obtain GST registration on behalf of the Company.
10. Agent shall ensure that products stored in proper and hygienic conditions: It is clearly understood that during the period the Company's products are stored in the Agents' warehouse, the Agent shall ensure that they are stored in proper and hygienic conditions on Pallets as also cold chain products in Walk in Cooler or Cooler under 2 to 8 degree Centigrade and A. C. Room under the temperature not exceeding 25 degree centigrade so as to comply with regulatory and statutory requirements, and as specified by the Company. The Agent shall also have pest control service every 6 months. Also install the required no. of Fire extinguishers as part of safety control measure. It is the responsibility of the Agent to avoid deterioration of the products, theft, pilferage, destruction or loss to the Company. The Agent shall reimburse the Company for all losses and expenses incurred by the Company expressly in the regard.
11. Products shall be stored in the area of warehouse which has been specifically selected/allocated: The Agent undertakes that the Company's products shall be always stored by the Agent in the Warehouse which has been specifically selected and approved by the Company in accordance with clauses aforesaid, provided, however, that if the entire space reserved for the Company is occupied by storing the Company's products and more storage place is required, the Agent may store the Company's products in a warehouse other than 111

that selected by the Company, after obtaining the prior written approval of the Company. It is clarified that in such an event, the provisions of this agreement shall continue to apply and the Agent shall be bound to fulfil all the obligations undertaken by the Agent under this Agreement.

12. Only the Company's product shall be stored in the allocated area of warehouse and products of other Company or lawful goods etc. shall not be stored in the selected/allocated area of warehouse: the licensed warehouse selected by the Company shall be purposefully utilized by the Agent for the storage and handling of Company's products of other companies which the company by agreement and by virtue of affiliation or understanding agree to arrange to store and sell for its own reasons either by manufacture or marketing or both, but in no case the Agent shall store, warehouse, stock or sell products of any other Company or store deal within the warehouse precincts, any hazardous, inflammable, injurious or unlawful goods either with interest or otherwise except with the written permission of the Company.
13. Company shall install a Laser Printer with conveyor belt for the Agent to print the stockist code or any other matter on the mono carton of the Products as per the instruction and guidance of the Company with a view to avoid infiltration of the products of the Company from one area to another area by the stockists. The Company will install a CCTV camera in the area where the laser printer is installed.
14. The Agent shall describe itself / himself as "Clearing and forwarding Agent" of the Company: The Agent shall always describe himself as a "Clearing and Forwarding Agent" of the Company and shall not give any guarantee or warranties or make any presentation in respect of the Company or its products. The Agent shall not bind the Company without its permission and the Company shall not be responsible for ultra -vires acts of the Agent.
15. Display of a sign-board: The Agent shall at its expense display a sign-board in a prominent position inside and outside the warehouse indicating that the Company's products are stored in the warehouse and they are the sole and exclusive property of the company irrespective of the fact whether the Company's products are stored in the entire floor area of the warehouse or only part thereof.
16. Products stored shall be sole and exclusive property of the Company : The Company's products or such dealt by the Company or authorized to be stored on behalf of the Company stored by the Agent in the warehouse shall at all times be the sole and exclusive property of the Company, and the Agent shall have no claim, lien, right, title or interest whatsoever in, to, over or in respect of the same.
17. The Agent shall not pledge the Company's products: The Agent shall not pledge hypothecate or otherwise or make use of the Company's products stored in the warehouse for any gain, advantage, facility or purpose of the benefit or gain of the Agent.
18. In Addition the Agent shall also be responsible for: In addition to all obligations undertaken under this agreement, the Agent shall also be responsible for and effective discharge of functions and duties as hereunder:
 - a) To store (under appropriate conditions) the Company's products for the purpose of sale and onward dispatch to Company's approved wholesale/stockist, Hospital Institutions, Doctors Etc., as per instructions from the Company in this regard.
 - b) To provide the Company's Head office with the necessary statements, reports, data, information, documents and records as may be required from time to time.
 - c) To furnish the Company's field force (including but not restricted to medical Representatives, District Manager, Regional Sales Manager) with all necessary feedback regarding movement and off take to the Company's products in different territories and such other information as are called for with specific reference to order execution, payment, transportation, claims etc. 111

- d) To deposit all cheques, drafts and monies received for and on behalf of the Company in the Company's Bank Account at such other location or process as initiated by the Company from time to time, on a daily basis and ensure periodic remittance to Company's Head Office. If such deposit is not made immediately and any loss is thereby caused to the Company, The Agent shall adequately compensate the Company. In the alternative the Agent shall comply promptly with such other payment system that the Company may introduce from time to time.
- e) It is mandatory on part of stockiest to issue cheque in advance towards its liability, with every order. The cheque should be crossed account payee and issued in favour of MIRUS MED SCIENCES (OPC) PRIVATE LIMITED drawn on Nationalised Bank or recognized private Bank in India, where the stockiest operates his regular account. The Agent agrees that in absence of this cheque, order will not be executed. The Agent shall ensure compliance of above provisions.
- f) To forward the documents immediately on dispatch of goods to stockiest.
- g) To deposit the cheque within due date as mention on invoice in HDFC Bank or such other bank as intimated by the Company from time to time if the cheque gets dis honoured, The Agent shall send the security cheque lying in the custody to the Company. All future supplies to such stockiest will be made only after clearing of all old dues and only against demand draft. The situation will be revised after three months
- h) To comply with / opt for such other payment system that the Company may introduce from time to time.
- i) To prepare invoices, Credit Notes and Debit Notes as per Company's instructions and ensure prompt settlement and adjustment thereof, with view to service the approved wholesale/Stockiest, Hospital Doctor and other customers in an efficient manner. All credit notes, however, will have to be forwarded to Company's Head Office for proper signature release. The Company will return the credit notes duly accepted within 15 days from the date of receipt provided it is as per the framework of the Company's guidelines. However, until such time the Company communicates to the Agent, in writing, the responsibility for preparing credit notes and debit notes shall rest with the Company.
- j) To store return goods (i.e. broken, expired products, damaged etc. but other than saleable products) separately with relevant documentation until initiated by the Company. As per Company's policy conveyed to you, the breakages, expired goods and saleable returns shall be verified at your end and entered online on the software provided by the Company. You shall abide by the Company policy on the verification, Transfer, disposal and physical destruction of such breakages and expires. The Company will intimate procedure to be followed for disposal of such product from time to time.
- k) To undertake all necessary correspondence and follow-up actions, steps and activities related to the Company's business as assigned including but not limited to execution of orders, claims with transporters, delay / damaged/non/short deliveries of consignment, delay in presentation of documents by the bankers, payments of bills filling of GST Returns and payment of Taxes, etc.
- l) The Agent shall provide adequate, independent and enclosed air condition space in the said premises where the representatives of the Company will be concluding official meetings. The Agent shall provide one air-conditioned Wi-Fi connections and latest audio-visual equipment and shall also provide white board refrigerator, steel cupboard with shelves, proper arrangement for drinking water, Tea & Coffee. In addition to above, the Agent shall provide two enclosed air condition chambers exclusively for the Company's Manager's with telephone, Wi-Fi Connection and other office equipment in his premises for carrying out official meetings.
- m) The agent undertakes to clear all the sample and promotional material consignments sent by the Company for distribution among the Company's field force at any region immediately on receipts/clearance and as per the discretion of the Company or by other authorized representative. However, until such time the Company communicates to the Agent, in writing, and the distribution of samples amongst the Company's Field Force shall be done by the Company from Hyderabad or from such other place at its discretion. 111

- n) The Agent shall assist the Company in submitting:
- i) Complaints to the Police authorities as and when warranted.
 - ii) Claims to Insurance Company and related formalities thereto. The Agent shall also comply in all respects with the requirements of insurance companies engaged or caused to be engaged by the Company to insure various risks to the products held by the Agent.
- o) The Agent shall keep his office open at least from Monday to Saturday between 10.00 a.m. to 7.00 p.m. subject to provisions of local Shop Establishment Act, and extend timings during sales closing and any other such occasion.
- p) To extend support to ensure compliance of the provisions of the Agreement executed between the Company and Stockiest/ Wholesaler as the Agent of the Company.
- q) The Agent shall always own / process licensed software(s) and hardware(s) and other Computer infrastructure as stated by the Company from time to time.
- r) The Agent shall not engage into any illegal activities nor shall drag the Company into any such activity. The Agent shall not involve the Company into any repercussion arising out of any illegal acts. The Agent shall not engage into any activity which may spoil image, reputation, brand name of the Company.
- s) It is expressly understood that you will not handover any stocks or cash to our field force for any reason nor loan them any amounts and will not involve them in any manner in delivering stocks or collecting stocks or collecting payments from our customers, including stockiest, sub-stockiest, chemists, hospitals and doctors. The Agent shall not be entitled to make any payment in cash or otherwise without prior permission of the Company. The Agent shall not accept orders against cash from the Company's representatives or other persons. Then Agent shall not accept or pay cash on behalf of the Company.
19. The Agent shall release the products only on receipt of approved indent: The Agent shall release the Company's products only on receipt of an indent from approved wholesalers/stockiest of the Company's products only on the strength of an Invoice covering the indent and further such release of the products will be only to approved Wholesalers/Stockists/Institutions, etc. as per list furnished by the Company as added/deleted from time to time. In no case Agent will sell the goods directly or in his own name. Further, the Agent shall sell and return collection/deposit in the name of the Company and not in his name.
20. All written orders issued by the Distribution Department shall be acted upon and follow the Distribution Operation Procedure Manual: All written orders including email and fax messages issued by the Distribution Department from the Head office shall be acted upon promptly to whom the Agent shall be primarily responsible for his activities on behalf of the Company. The Company at its discretion may enjoin the Agent to conduct the Company's business activity in terms of a written Circular(s) as issued by the Company from time to time. The Agent shall strictly adhere to the said Circular(s), in the discharge of all the functions, actions or activity accordingly.
21. Procedure to be followed in the event of damage to packaging material: In the event of any damage to packaging materials of the products which in the opinion of the Company is not on account of any act of negligence on the part of the Agent shall repack the products with fresh packing materials. However, in the opinion of the Company, the damage to the packing material of the products has occurred on account of any act of negligence on the part of the Agent, the company shall be entitled to recover the cost of replacing the damaged packing material from the Agent and the Agent agrees, undertakes and authorizes the Company to adjust such recoveries from any dues payable to the Agent under this Agreement. 111

22. The Agent shall maintain all records, documents, papers files: The Agent shall maintain all records, documents, papers, files etc. that may be sent to the Company or required to be maintained under any law, rule and regulation in force.
23. The Agent shall submit the statements, returns, reports, records: The Agent shall submit to the Company, at such times and at such intervals as may be determined by the Company, statements, returns, reports, records and other information or maintain such documents as are necessary both in terms of any statute or directive of the Company, in the format and design as prescribed by such law and rule or by the Company.
24. The Agent shall not impose any obligation on the Company: The Agent shall not, except with the prior written approval of the Company enter into any contract on behalf of the Company or in any way represent the Company or impose or attempt to impose any contractual or other obligation on the Company.
25. The Agent shall not exercise any charge or lien on the Company's products: It is merely expressly agreed by the Agent that the Agent shall not, or statements that may be in the Agent's custody, control or possession, in respect of any remuneration, expenses, charges amount that may be due and payable to the Agent, and on expiry or earlier determined of this Agreement, the Agent shall forthwith return to the Company all its products stored in the Warehouse, as well as, relevant files, papers, documents, letters, etc. within the Agents' custody, possession or control.
26. The Company shall not be liable for the payment to the Agent's employees: It is hereby expressly agreed between the parties hereto that the Company shall not be nor shall be deemed in any way to be, liable or responsible for the payment to or administration and supervision of the Agent's employees and personnel and for such other actions of the Agent to maintain discipline and decorum or for any other consequences of actions initiated by the Agent in the regard, and the Agent shall at all-time s ensure that the Company is not, in any way, involved in any other matters, questions, disputes or differences relating to or arising between the Agent and his employees and personnel.
27. The Agent shall comply with labour law, Act, Rule, Regulation:
- The Agent shall at all times continue to comply with, abide by or function within the purview of any labour law, Act, Rule, Regulation as are in force, or introduced from time to time. With respect to the employment of personnel, payment of wages, compensation, welfare etc. and the Company shall not in any way explicitly or implicitly involve or deemed to be involved in any matter or question, of payment of monies, compensation, damages, fines, penalties, expenses, cost, etc. due to or arising out of non-compliance with any provision thereto. However, the Agent shall also indemnify against all costs, charges, expenses, losses, damages, incurred, suffered or borne by the Company by reason of any action, claim or proceedings launched, commenced or made against the Company by the Agent's personnel, employees or representatives.
28. The Agent shall indemnify the Company: (a) The Agent shall indemnify the Company and keep it indemnified against all costs, charges, expenses, losses and damages incurred or at any time suffered, caused or satisfied by the Company by reason of any loss, damage, destruction of the Company's goods due to or on account of any default. Negligence or any breach or default of any of the terms and conditions of the Agreement on the part of the Agent or the Agent's employees or representatives.
- (b) If the performance of obligations under this agreement is prevented, restricted or interfered with by reason of any contingencies which could have been reasonably avoided and beyond the control of the parties, the so affected shall not be liable to the other for damages to the extent of such prevention, restriction or interference, such contingencies shall include strikes, or other concerted acts of workmen, fire, flood, explosion, action of the elements, riots, sabotage, acts of gods, acts of Government or war or enemy action.
29. The Agent shall be solely responsible for rents, rates, taxes, cesses, charges: The Agent shall be solely responsible for and shall pay all existing and future rents, rates, taxes, cesses, charges, assessments and outgoings of whatsoever nature and

whether central, state, municipal, local or otherwise and all increases therein as may be assessed, charged, imposed or become payable in respect of the warehouse in which the Company's products are stored.

30. Transportation/Courier/Freight from the Company's location to Agent's warehouse: The Company's products shall be sent by rail/road/air to the Agent's warehouse and all costs in respect of freight & Octroi for transportation from Company's warehouse to Agent's warehouse shall be borne by the Company. All costs and charges for unloading and hamali at Agents' warehouse shall be borne by the Agent. The Agent shall not return or transfer any Company's products unless otherwise advised by the Company.
31. Transportation/Courier/freight from Agent's warehouse to stockiest: The Agent shall bear the delivery charges, dispatch and freight expenses from Agent's warehouse in respect of dispatch of the Company's Products to local and outstation stockists or institutions or any other location in the state. The Agent shall undertake marking, packing, addressing, sealing and strapping of the cases containing Company's products at his own expense and costs. Agent shall dispatch all the consignments to the Stockist only by couriers at his own expenses.
32. Stationery to be used by the Agent: The Company shall not provide any stationery to the Agent, and the Agent shall make own arrangement for the required stationery.
33. Expense in connection with the insurance: The Company shall bear the expenses in connection with the insurance of the Company's products against transit risks whilst dispatched to and from the Agents' warehouse. In addition, the company shall bear the expenses in connection with the insurance of the Company's products while stored and/or lying at the Agent's warehouse against fire, riot and civil commotion. However, the Agent shall be responsible for and bear the insurance of the warehouse where the Company's products will be stored.
34. The Company shall bear discounts: The Company shall bear all trade discount, free replacements, quantity discounts, cash discount, bonus offers allowed by the Agent in sale invoice of its products to approved wholesalers/stockiest/institutions, etc. under specific instructions in writing from the Company.
35. The Company shall bear the applicable taxes: Taxes directly related to and applicable under any law, rule regulation or order will be borne by the Company.
36. The Company shall provide pricelist: The Company shall provide pricelist at which the Company's products are to be supplied to its approved wholesalers/stockiest and the Agent shall not charge more or less unless approved and authorized by the Company to that effect.
37. The Agent will keep a token deposit with the Company RS. 50 LAKH as and interest @5% p.a. will be paid on quarterly basis.
38. Commission:
- a) The Commission /service charges to Agent will be calculated on Net Sales (Before Tax and after deducting Sales and non-saleable Returns, Rate Difference Credit Notes) as per the Software of Company.
- b) The Per Month Commission will be as under:

Minimum Commission will be Rs. 1 lakh per month or 1.40% whichever is higher on net sales, i.e. after deducting saleable and non-saleable returns with deduction of TDS as applicable.

GST/TDS will be as applicable.

This is inclusive of all expenses including courier charges incurred on dispatch of sale consignments dispatched to stockiest, hospitals, Institutions etc. but except the following:

- i) Freight or courier expenses incurred on dispatch of Sales Promotional materials.
- ii) Freight or courier expenses incurred on Stock Transfers to Company's other locations and/or stock rebooked to CWH of Company.
- iii) Any other expense with prior written approval from Company HO.
 - a) It is hereby agreed by and between the parties hereto that the Company will pay to the agent the said Commission/Service Charges for the Net Sales accounted in the preceding month before 45 days from the closing of month in respect of the invoices raised.

RIGHT TO ACCRUE COMMISSION: Right to accrue the commission arises only when the company receives the full payment of invoices raised.

- (II) Net Sales shall be for the purpose of calculation of commission, the amount of each invoice exclusive of excise duty, wholesalers/stockiest discount, sales tax and other levies, freight in respect of the Company's products released from the Agent's warehouse and less sales returns and non-saleable returns.

Such commission shall be payable every month only on such sales effected from the Agent's warehouse for which full payment has been received. It is agreed that such compensation, constitutes the entire remuneration due to Agent for fulfilment of his functions, duties and obligations under this Agreement, save and except as reimbursable by the Company to the Agent as mentioned elsewhere in the Agreement.

- 39. Power of Attorney: If required, the Company will execute / arrange to execute a Power of Attorney (POA) in favour of the Agent or its representative to enable them to represent the Company. Its principals before the Government local bodies and other appropriate Authorities as may be required for the purpose of this Agreement. Such POA shall be valid so long as the Agent remains as the C&F Agent of the Company or until POA would expressly revoked by the Company, whichever is earlier. After termination of agency, the Agent shall immediately return the POA to the Company and shall not utilize the same.
- 40. The Company's officials can visit the Agent's warehouse: Such of the Company's officers, employees, agents or servants who will be at liberty at any time to enter into Agent's warehouse for the purpose of audit, taking an account of inventory of the Company's products stored therein or for the purpose of viewing the condition thereof or for inspecting Company's products or scrutiny of books, documents, or registers, statement etc. maintained by the Agent in connection with the Company's products during the Continuance of this Agreement. The Agent and its employment, officers and servants shall render all assistance to the activities which will be done during the operation timing.
- 41. Termination:
 - (a) The Company shall be entitled to terminate this agreement immediately upon the happening of any of the following events:
 - 1. If the Agent, in the sole opinion of the Company (which shall be conclusive and binding upon the Agent) becomes incapable of carrying out the duties undertaken by the Agent under this Agreement.
 - 2. If there is any change in the constitution of the firm or a change in the status of the firm.
 - 3. If the Agent commits a breach of any of the provisions of this Agreement, and fails to remedy the same within 7 days from receipt of a written notice from the Company to do so;
 - 4. If the Agent or any of the partners of the Agent's partnership firm commits an act of insolvency or is adjusted an insolvent or if the Agent or any of its partners has made an application to be adjusted insolvent. 111

5. If the Agent or any of its partners enter into a compromise with their or his creditors or if any distress, execution or other process is served upon the Agent, or any of its partners or if any encumbrance takes possession or a receiver is appointed for any part of property or assets of the Agent or any of its partners.
6. The Company shall have the right to terminate the Agreement without assigning any reason.
7. If The Agent:
 - Suppresses and / or falsifies the sales deliberately.
 - Fails to remit promptly the monies due to the Company.
 - Acts in any manner detrimental to the Company's interests.
 - It convicted by a competent Authority of any offense in a judicial court.
 - Makes any commitment on behalf of the Company without the express written sanction of the Company save as provided for elsewhere in this agreement and
 - Fails to tender a true and correct account of the Company's goods and property entrusted to him.
- (b) Either party to this agreement shall also have the right to terminate this Agreement, without assigning any reason whatsoever by giving the Agent or the Company, as the case may be written notice of 30 days in that behalf.
- (c) The Company shall not in any case be liable to pay the Agent any Compensation, in the event of termination of this contract.
42. On termination of this Agreement: On termination of this Agreement, the Agent shall render complete accounts of the products and hand over the goods to the authorized representative(s) of the Company. The Agent shall extend its full support for smooth hand over to new C&F Agent of the Company.
43. On termination the Security Deposit shall be refunded: On the expiry or sooner determination of this Agreement, the Security Deposit Paid to the Company, shall be refunded to the Agent, subject to the Agent rendering full and satisfactory accounts of all matter under this Agreement to the entire satisfaction of the Company and due settlements thereon by way of retuning of all stocks, statuary and other forms, invoices, stationery, records and registers, funds collected, software programmes etc. shortcomings in any of these aspects shall be made good from the Security Deposit with the Company and the Agent shall be liable to pay additional amount, if estimated recovery exceeds the Security Deposit.
44. No Modification unless in writing: No Modification or variation of this Agreement, if any made by the Company shall be intimated in writing to the Agent.
45. The Agent shall not assign its rights, liabilities, duties or obligations to any other party: The Agent shall not assign or otherwise transfer its rights or benefits, liabilities, duties or obligations under this Agreement to any other party without the prior consent of the Company in that behalf.
46. Any relaxation shall not constitute wavier: Any relaxation, indulgence or concessions granted, made or shown by the Company to or in favour of the Agent under this Agreement shall not constitute any wavier of rights by the Company and in any way or affect its rights under this Agreement for at law.
47. Exclusive jurisdiction of the Courts in Hyderabad: This Agreement shall be governed by the laws of India. All legal proceedings arising out of or under this Agreement shall be subject to the jurisdiction of the courts of Hyderabad only.

48. Arbitration: Any dispute or difference which may at any time arise between the parties hereto as to the construction, meaning or effect hereof or as to any clause, matter or thing herein contained or as to the rights or liabilities of the parties hereunder shall, if the same cannot be amicably resolved, be referred to Arbitration under and in accordance with and subject to the provisions of the Indian Arbitration and Conciliation Act, 1996 or any statutory modification or re-enactment thereof and the award/s of any such Arbitration shall be made rule of the High Court of Judicature at Hyderabad. The venue of such Arbitration shall be made in Hyderabad.

IN WITNESS WHEREOF THE parties hereto have duly executed these presents on the date Signed &

Delivered on behalf of

mentioned) Signed and Delivered by the within named

) Company **M/s. MIRUS MED SCIENCES (OPC) PVT LTD)**

Through its Managing Director **Mr. U.MAHIPAL REDDY**) in the presence of witness

signed and Delivered by the within) Named Agent {{NamedAgent}}

Through its Partner {{Partner}} in the presence of witness Mr. {{witness}} herein above